

DEPARTMENT OF THE NAVY

NAVSUP WSS

700 ROBBINS AVENUE PHILADELPHIA PA 19111-5098

Justification for Other Than Full & Open Competition

1. Contracting Activity

Contracting Activity		NAVSUP WSS - Philadelphia		Type	A1
Folder #	23331-0002	PD #	N0038324X0386		
Item Manager		Work Function	Planner	Phone	(215) 697-4789
				Code	N9824.01
Technician		Work Function	Equipment Specialist	Phone	(215) 697-6464
				Code	N9824.21
Buyer		Work Function	Contract Specialist	Phone	(215) 697-2813
				Code	N763.03

2. Description of the Action Being Approved

Description	Negotiation and award of a contract through other than full and open competition.
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3. Description of Supplies/Services

This J&A covers the acquisition of the following

☒ Spares ☐ Repair/Overhaul ☐ Modification ☐ Management ☐ Piece Parts ☐ Data Report

Nomenclature	TOUCHSCREEN CONTROL	Quantity	11
NSN	7025-017169097	Cage Code	
P/N	LCS6200C15-042	Unit Price	
Option	N	Option %	
		Days	
Estimated Value			
Ship To			

Period of Performance: Expected Final Delivery Date 03/27/2026

Line of Accounting

4. Statutory Authority Permitting Other Than Full & Open Competition

This J&A is based upon the authority of 10 USC 3204(A) (1), only one or a limited number of responsible sources will satisfy agency requirements, as implemented by FAR 6.302-1

5. Rationale Justifying Use of Cited Authority

A/RMC 4

Acquire, for the first time, directly from the actual manufacturer.

A/RMSC Y

The design of this part is unstable. Engineering, manufacturing, or performance characteristics indicate that the required design objectives have not been achieved. Major changes are contemplated because the part has a low process yield or has demonstrated marginal performance during tests or service use. These changes will render the present part obsolete and unusable in its present configuration. Limited acquisition/repair from the present source is anticipated pending configuration changes. If one source is available, A/RMCs 3, 4, or 5 are valid. If at least two sources exist, A/RMCs 1 or 2 are valid.

This acquisition will be solicited to

L-3 Harris Technologies (OGCL4) The items to be procured under this acquisition for Interim Supply Support (ISS) of the MQ-4 Triton. ISS items are considered design unstable as no formal configuration baseline has been established. Since Material Support Date (MSD) is schedule for 10/01/2024, re-procurement technical data has not yet been developed, and will not be available in time to support Initial Operating Capability (IOC). It is anticipated that technical data will be provided to the Navy at a later date, at which time the technical data will be evaluated to determine if it is suitable for competition, as well as evaluating the feasibility of any alternatives for achieving and /or enhancing competition. L-3 Harris Technologies (OGCL4) is the only source capable of satisfying this requirement.

6. Description of Efforts Made To Solicit Offers From as Many Offerors as Practicable

15 MAR 2019 Class Waiver of the Requirement to Post a Request for Information or Sources Sought Notice applies to this requirement

The proposed contract action was synopsisized on the government-wide point of entry on

12/02/2023

and as a result no other sources expressed an interest in this acquisition.

Market research was conducted in accordance with far part 10. The results of the market research conducted (or the reason(s) market research was not conducted) are as follows

The latest configuration has been checked and all records (ITIMP, JDRS/ASE, etc.) have been properly aligned, identified, and documented. The referenced item is Interim Supply Support (ISS) and design unstable. The Material Support Date (MSD) is scheduled for 10/01/2024. At this time, the technical data required to support competition is not available. L3 Harris Technologies (OGCL4) is the only source capable of satisfying this requirement. The available technical data is insufficient for the development of new sources. Source Development Department files indicate no Source Approval Request (SAR) has been received from any party interested in becoming an approved source. Pending MSD, L3 Harris (OGCL4) is the only approved source.

7. Determination of Fair And Reasonable Cost

The contracting officer determines that the anticipated cost to the Government of the supplies covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition

For reasons set forth in Paragraph (5 & 6), NAVSUP WSS has no plans at this time to compete future contracts for the subject item covered by this document. If another potential manufacturing source emerges, NAVSUP WSS will assess whether competition for future requirements is feasible. Also, future requirements will be advertised on the government-wide point of entry.

Previous J&A

No Previous J&A - Award history does not exist

9. Any Other Facts Supporting Other Than Full & Open Competition

N/A

History

Created By		Work Function	Planner	Created Date	08/29/2024
					29-AUG-24

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Requirements Cognizance Signature		Work Function	Planner	Requirements Cognizance Signature Date	08/29/2024

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Technical Cognizance Signature		Work Function	Equipment Specialist	Technical Cognizance Signature Date	08/30/2024

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Source Validation Cognizance Signature		Work Function	Equipment Specialist	Source Validation Cognizance Signature Date	09/04/2024

I certify that this J&A is accurate and complete to the best of my knowledge and belief

Contracting Officer Certification Signature		Work Function	Contract Specialist	Contracting Officer Certification Signature Date	09/09/2024

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

Competition Advocacy Review And Concurrence Signature		Work Function	Competition Advocate	Competition Advocacy Review And Concurrence Signature Date	09/18/2024

I certify that this J&A is legally sufficient to the best of my knowledge and belief

Legal Sufficiency Review Signature		Work Function	Attorney	Legal Sufficiency Review Signature Date	09/30/2024

I certify that this J&A is accurate and complete to the best of my knowledge and belief

Approval Required
By Far 6.304
Signature

Work Function
[Redacted]
[Redacted]

Contract Specialist

Approval Required
By Far 6.304
Signature Date

09/30/2024